

Pesly Legal Documents

Five foundational documents for the Pesly pilot and first customers

Prepared October 2026 for Angela Odhiambo, founder · DRAFTS for review by a Kenyan advocate before use with paying customers

IMPORTANT — READ FIRST. These are working drafts prepared as a starting point. They are not legal advice. Before signing any customer, have a Kenyan advocate review and finalize them (budget KSh 5,000–15,000 for a review pass). Placeholders appear in **[green brackets]** — fill them in as the business is registered. Kenya's Data Protection Act 2019 (DPA) imposes real obligations on Pesly's model; the advocate review should confirm ODPC registration requirements and consent wording.

Contents

1. Terms of Service (web app)
2. Privacy Policy (DPA 2019 aligned)
3. Owner Subscription Agreement
4. Driver Consent Language (Privacy Center screens)
5. Driver-Owner Agreement Template (product feature)

Document 1 — Pesly Terms of Service

1. About these Terms

These Terms of Service ("Terms") govern your use of the Pesly web application and mobile applications (the "Service") operated by **[Pesly / Pesly Ltd, registration number ____]** ("Pesly", "we", "us"). By creating an account or using the Service, you agree to these Terms.

2. What Pesly Is — and Is Not

Pesly is a financial record-keeping, evidence-collection and reconciliation tool for vehicle-based work. Pesly:

- collects earning and expense records from sources you connect (such as ride-hailing platform statements received by email), with your consent;
- grades every figure with an evidence status (Verified, Supported, Reported, Estimated, Disputed, Unverified, Reconciled);

- reconciles independent data sources and flags mismatches as items "requiring review";
- records agreements between vehicle owners and drivers and their version history.

Pesly is **not** a transport network company, taxi service, booking platform, lender, insurer, financial adviser, debt collector, or law firm. Pesly does not dispatch, match or carry passengers, and takes no commission from trips.

3. Accounts and Eligibility

You must be at least 18 years old and lawfully able to enter contracts. You may register as a Driver, a Vehicle Owner, or both. You are responsible for keeping your login credentials and PIN secure, and for all activity under your account. Notify us immediately of unauthorized use.

4. Data Collection and Consent

Pesly only accesses data sources you explicitly connect, for the limited purposes shown on each consent screen. See our Privacy Policy for details. You may disconnect any source at any time in the Privacy Center, and access continues only while your connection is active.

5. Evidence Grading and AI Processing

Pesly uses automated analysis (including artificial intelligence) to extract and organize information from connected sources. AI extraction can make mistakes. Every figure carries an evidence status so you can judge its reliability. Figures marked Estimated are inferences, not records. You can dispute any figure, and disputes are recorded. Pesly does not guarantee that any figure is complete or accurate; it guarantees only to show you the evidence behind each one.

6. Disputes Between Drivers and Owners

Pesly records and presents evidence to support resolution of disagreements. Pesly does not adjudicate disputes, does not decide who is right, and is not a party to any driver-owner agreement. Language in the app such as "requires review" is informational and never an accusation against any person.

7. Subscriptions and Payment

Owner subscriptions are billed monthly in advance per vehicle at the published tier rates, payable via M-Pesa paybill **[Paybill number]** or another method we provide. Prices may change with 30 days' notice. Driver access to core features is free; optional premium features ("Pesly Plus") are billed as published. Fees are non-refundable except where required by law.

8. Acceptable Use

You must not: connect an account you are not entitled to access; falsify or manipulate records; use the Service to harass, defame or threaten any person; reverse-engineer the Service; resell access; or use the Service for any unlawful purpose.

9. Intellectual Property

Pesly owns the Service, its software, designs and content. You own your data. You grant us a limited licence to process your data as needed to provide the Service. You retain all rights to content you upload; we claim none of it.

10. Disclaimer and Limitation of Liability

The Service is provided "as is" without warranties of any kind, to the maximum extent permitted by law. To the maximum extent permitted by law, Pesly's total liability for any claim arising from the Service is limited to the subscription fees you paid to Pesly in the three (3) months before the claim. Pesly is not liable for indirect or consequential losses, including lost income, lost profits, or damaged business relationships.

11. Termination

You may delete your account at any time. We may suspend or terminate accounts that breach these Terms, fail to pay applicable fees, or where required by law, with notice where practicable. On termination, we delete or de-identify your personal data as described in the Privacy Policy, subject to legal retention requirements.

12. Governing Law and Disputes

These Terms are governed by the laws of Kenya. Parties will first attempt good-faith resolution; unresolved disputes go to mediation, and failing that, to the courts of Kenya at Nairobi.

13. Changes

We may update these Terms with 14 days' notice via the app or by email. Continued use after changes take effect means acceptance.

Contact: [\[email / WhatsApp / postal address\]](#). Last updated: October 2026.

Document 2 — Pesly Privacy Policy

1. Who We Are

Pesly ("we", "us") operates a financial record-keeping and reconciliation service at [\[domain\]](#). Pesly is the data controller for personal data processed through the Service. **[Once registered: ODPC data controller/processor registration number ____].**

2. Data We Collect and Why

Source	Data	Purpose	Legal basis (DPA 2019)
Gmail connection (drivers & owners)	Ride-hailing platform statement emails (Uber, Bolt, Little) — sender, date, fare, trip count, commission and incentive figures. Scope-limited to statement-type emails; we do not read your other email.	Build the vehicle's earnings record	Explicit, per-source consent
Messages & notifications (Android app, future)	M-Pesa transaction messages and specified payment/bundle notifications. We do not read personal chats, contacts, or unrelated notifications.	Record payments and expenses	Explicit consent via Android permission grants, revocable in-app
Photos & documents you upload	Receipts, statements and their extracted contents	Record expenses and earnings	Explicit consent + contract performance

Account data	Name, phone number, PIN (stored hashed), role (driver/owner), vehicle links	Provide the Service, prevent abuse	Contract performance; legitimate interest
Usage data	Sync logs, feature use, device/browser basics	Keep the Service working, improve it	Legitimate interest

3. The Owner-Driver Data Boundary

By design, owners see business intelligence about their vehicles (reconciled earnings, costs, evidence-graded totals) — not drivers' private data. Drivers control any additional access grants in the Privacy Center. Pesly does not sell personal data. If we ever offer consent-based income-verification products, participation will be separate, opt-in, and revocable.

4. Sharing

We share personal data only with: service providers who help us run the Service (hosting, email, AI processing) under written data-protection terms; and authorities where the law requires. We never sell your data.

5. Retention

Financial records are retained while your account is active and for **[24 months]** after, because disputed vehicle records often resurface long afterwards. You may request earlier deletion of any record that is not subject to a pending dispute.

6. Your Rights

Under the DPA 2019 you may: access your data; correct it; object to processing; withdraw consent (disconnect any source in the Privacy Center — withdrawal does not affect processing already lawfully done); request deletion; and lodge a complaint with the Office of the Data Protection Commissioner (<https://www.odpc.go.ke>). We respond to rights requests within 7 days where reasonably possible.

7. Security

We use encryption in transit, hashed credentials, scoped OAuth access with no password storage, and least-privilege internal access. No system is perfectly secure; we notify affected users and the ODPC of any notifiable breach as the law requires.

8. Contact

Data protection contact: **[email / phone]**. Last updated: October 2026.

Document 3 — Pesly Owner Subscription Agreement

Between Pesly **[entity + registration number]** ("Pesly") and the subscribing vehicle owner ("Owner").

1. Service

Pesly provides the Owner with: per-vehicle earnings and cost records collected from connected sources; evidence statuses on all figures; reconciliation and "requires review" flagging; agreement recording with version history; alerts; and reporting. Features depend on the subscribed tier.

2. Tiers and Fees

Tier	Vehicles	Monthly fee (KSh)
Starter	1-3	400 per vehicle
Growth	4-20	350 per vehicle
Fleet	21-100	300 per vehicle
Enterprise	100+	Custom

Fees are payable monthly in advance by M-Pesa paybill **[number]**. A **[30]**-day free trial applies to first-time subscribers. Grace period for late payment: **[7]** days, after which the account is suspended until payment (data is retained, not deleted).

3. Owner's Acknowledgement of the Data Boundary

The Owner subscribes to business intelligence about the Owner's own vehicles. The Owner acknowledges that: (a) drivers' accounts belong to the drivers; (b) driver data beyond the vehicle's business records is visible to the Owner only if the driver has granted it in the Pesly Privacy Center; (c) Pesly may not and will not circumvent the data boundary at the Owner's request.

4. Vehicle and Driver Onboarding

The Owner is responsible for providing accurate vehicle and driver details, and for having a lawful basis (ownership; driver consent) for monitoring each vehicle's records. Pesly may require verification before activating a vehicle.

5. Evidence, Not Accusations

The Owner acknowledges that "requires review" flags are indicators for human review, not findings of wrongdoing against any driver. The Owner agrees not to use Pesly data to defame, harass, threaten or unlawfully dismiss any driver, and that any action against a driver is the Owner's own responsibility.

6. Term, Suspension and Termination

Initial term: **[6]** months, then rolling monthly. Either party may terminate on 30 days' written notice. Pesly may suspend the Service for non-payment or breach. On termination, the Owner receives a final data export (earnings and cost records for the subscription period) and Pesly retains records only as the Privacy Policy describes.

7. Liability

To the maximum extent permitted by law, Pesly's total liability under this Agreement is limited to fees paid in the three (3) months preceding the claim. Pesly is not liable for disputes between the Owner and any driver, or for the Owner's decisions based on Service data.

8. General

Governing law: Kenya. Disputes: good-faith negotiation, then mediation, then the courts of Kenya at Nairobi. This Agreement, the Terms of Service and Privacy Policy together form the whole agreement.

Signed for Pesly

Signed by the Owner

Name: _____

Date: _____

Name: _____

Date: _____

Document 4 — Driver Consent Language (Privacy Center Screens)

Plain-language consent wording for in-app grant screens. Each source has its own screen with its own Accept/Decline. No bundled consent, no pre-ticked boxes.

Screen A — Connect Gmail

"Pesly will read only statement-type emails from ride-hailing platforms (Uber, Bolt, Little Cab) in your Gmail — the weekly earnings summaries they send you. Pesly will use them to build your earnings record automatically.

Pesly will NEVER read: personal emails, chats, photos, contacts, or anything else in your inbox.

You can disconnect at any time in the Privacy Center with one tap, and the reading stops immediately."

Screen B — Allow Messages & Notifications (Android app, Phase 2)

"Pesly will read only M-Pesa transaction messages and payment/bundle notifications (for example 'You have purchased 30 bob data bundle') on this phone. Pesly uses them to record money in and money out automatically.

Pesly will NEVER read: your WhatsApp or SMS chats, contacts, photos, or any notification you don't list here. You can see and change the exact list of what Pesly reads, any time. You can revoke this permission in one tap — in the app or in your phone settings."

Screen C — Photo Capture

"When you upload a photo (a receipt, a statement, a screenshot), Pesly reads the numbers in it and creates records you can check before saving. Photos are stored with the records so you always have the proof. You can delete any photo and its record."

Screen D — What Your Owner Can See (always visible, not a one-time consent)

"Your owner sees business records for the vehicle you drive: reconciled earnings and costs, evidence-graded totals, and 'requires review' items. Your owner does NOT see: your other accounts, your other income, or anything you haven't granted. You control any additional access in the Privacy Center."

Screen E — Dispute Rights

"If any number in your record is wrong, tap it and press Dispute. We'll show you the evidence behind it, your dispute is recorded, and the figure is marked Disputed until it's resolved. Disputing is free and never affects your account."

Consent Log (system requirement)

The app must store, per user: each consent given, the exact wording shown, timestamp, and withdrawal events. This log is the audit trail required by the DPA 2019 and is the founder's first line of defence in any complaint.

Document 5 — Driver-Owner Agreement Template (Product Feature)

A fill-in template offered inside Pesly's Agreement Manager. Both parties complete it; Pesly records it with version history. Not legal advice; parties may seek independent advice before signing.

VEHICLE WORK AGREEMENT

Made on **[date]** between **[Owner name, ID no.]** ("Owner") and **[Driver name, ID no., licence no.]** ("Driver") for the vehicle **[make, model, plate]**.

1. Work and Term

Driver will operate the vehicle for ride-hailing/platform work from **[start date]** until terminated as below. Working days/hours: **[e.g. Mon-Sat, 6am-8pm]**.

2. Payment Structure (choose one)

- a) Fixed: Driver remits KSh **[amount]** per **[day/week]**; Driver keeps the remainder.
- b) Percentage: Driver remits **[__%]** of platform gross earnings per **[day/week]**.
- c) Hybrid: Driver remits KSh **[base]** per day plus **[__%]** of gross above KSh **[threshold]**.
- d) Custom: **[describe]**.

3. Expenses

Fuel paid by: **[Owner/Driver]**. Data/airtime: **[__]**. Parking & county fees: **[__]**. Maintenance & repairs: **[__]**. Insurance: Owner. Traffic fines caused by Driver: Driver.

4. Records and Reconciliation via Pesly

Both parties connect their accounts to Pesly and accept that Pesly's evidence-graded records are the reference for earnings, remittances and expenses. Figures flagged "requires review" are discussed before any deduction or accusation. Neither party treats an unresolved flag as proof of wrongdoing.

5. Handover

Remittance is due on **[day(s)]** by M-Pesa to **[number]**; the Pesly record of the transfer is the receipt.

6. Termination

Either party may end this agreement on **[7]** days' notice. Immediate grounds: dishonesty, reckless damage, or breach of platform rules leading to account deactivation. Unpaid balances survive termination.

7. Disputes

Good-faith discussion first (using the Pesly evidence), then a mutually agreed mediator, then courts of Kenya. Each party keeps a copy; Pesly stores the version history.

Owner signature

Driver signature

Date: _____

Date: _____

Before first paying customer — checklist: (1) Register sole proprietorship + KRA PIN on eCitizen; (2) Advocate reviews this pack; (3) ODPC registration as data controller/processor; (4) Set up M-Pesa paybill; (5) Insert paybill, contacts and entity details into the placeholders; (6) Convert to Pesly Ltd before scaling (advocate, ~KSh 25,000–45,000).